COURT OF APPEALS OF THE STATE OF WASHINGTON
DIVISION ONE

NO. 86001-1-I

STATE OF WASHINGTON,
Respondent,

v.

JOSE HERNANDEZ-ESCOBAR,
Appellant.

ON APPEAL FROM THE SUPERIOR COURT OF THE STATE OF WASHINGTON FOR KING COUNTY

APPELLANT'S REPLY BRIEF

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A. ARGUMENT

1. The court erroneously permitted a juror to serve in the case who did not meet the constitutional or statutory qualifications.

a. Article I, section 22 demands that all jurors in criminal cases must be residents of the county where the offense occurred.

It is undisputed that all jurors must be residents of the county where the offense occurred in a criminal case. "On its face, article I, section 22 does not permit a jury to include any individual who is not a resident of that county." *City of Bothell v. Barnhart*, 156 Wn. App. 531, 536, 234 P.3d 264 (2010), *aff'd*, 172 Wn.2d 223, 257 P.3d 648 (2011); Const. art. I, § 22 ("In criminal prosecutions the accused shall have the right" to a jury "of the county in which the offense is charged to have been committed."); *see also* RCW 2.36.070(3) (disqualifying any potential juror who "is not a resident of the county in which he or she has been summoned to serve"); RCW 2.36.010(7) (jury must be comprised of "qualified inhabitants of a particular district.").

The juror's residency is not a matter of judicial discretion. "A defendant's jury-trial right provided in article I, section 22 is satisfied only if all jurors reside in the county wherein the charged offense was allegedly committed." *Barnhart*, 156 Wn. App. at 536.

The prosecution agrees with the mandatory, constitutional nature of this requirement but asserts the issue is not manifestly apparent in the record. Resp. Brief at 14. This effort to evade review should be disregarded.

The record plainly shows that the parties fully litigated the issue. 5/15RP 1986-1991, 2012-25. The court thanked defense counsel for thoroughly questioning the juror. 5/15RP 2025. The prosecution does not claim that any further record is needed or would have altered the result. While Mr. Hernandez-Escobar expressed uncertainty about the law governing residency and whether it applied to this juror, the court firmly ruled on the issue, leaving no room to think that any further

objection by Mr. Hernandez-Escobar would have served any purpose. 5/15RP 2023-25.

A trial court does not have discretion to permit a juror to serve who is not a resident of the county where the offense occurred. Our courts "have never held that a juror could be selected from outside the county." *Barnhart*, 172 Wn.2d at 230. As this Court also explained in *Barnhart*, a juror's "residence in the county wherein the charged crime was allegedly committed is a constitutional requirement that must be satisfied for an individual to qualify for jury service." 156 Wn. App. at 536.

b. Juror 8 was an Arizona resident when the trial started.

The court acknowledged Juror 8 said, "I spend most of my time in Arizona." 5/15/RP 1987. He said he had been living in Arizona for nine months of the year, which is 75 percent of the year. 5/15RP 2016. He told the court, "My primary residency in is Wickenburg Arizona with my mom." Opening Brief, App. A (email from juror).

He had Arizona driver's and motorcycle licenses. 5/15RP 1989. He was not registered to vote in Washington. 5/15RP 2002. He had been predominantly living in Arizona for the past four years. 5/15/RP 2016. He had just turned 18 on April 6, so he had been primarily living in Arizona since he was 13 or 14 years old. 5/15/RP 2020.

Juror 8 arrived in Washington for his most recent visit with his father on April 3, which was the same day Mr. Hernandez-Escobar's trial started. 4/3/23RP 64; 5/15RP 2018. While Juror 8 also said he planned to stay in Washington for the time being, he offered no substantive support for the claim that he would remain in the county as more than a visitor, such as an effort to find an apartment or other long-term future commitments. Having spent the majority of his time in Arizona for the past four years, and describing Arizona as his "primary residence," he was not "of the county" when the trial began. Opening Brief, App. A.

Juror 8 had not undertaken any steps to demonstrate his residency within this state, much less the county. His email to the court demonstrates his uncertainty of whether he should be a juror in King County. Opening Brief, App. A.

He had not transferred his driver's license, even though state law requires a person who moves to Washington to do so within 30 days of moving. RCW 46.20.021(1). Nor had he surrendered his Arizona license, which state law also requires upon moving to Washington. RCW 46.20.021(2). He did not own or rent a home but rather was staying with his father.

On this slim evidence, Juror 8 cannot be deemed a resident of the county under article I, section 22. Having arrived in Washington only on the day the trial started, after living in Arizona for seventy-five percent of the year, and having lived primarily in Arizona since he was 13 or 14, he was not a resident before the trial began. He is not deemed a resident simply because he was present at the time of jury selection.

c. The trial court does not have free rein to declare that a juror who spent 75 percent of his time in Arizona qualified as a county resident.

The prosecution admits "sparse," if any, case law informed the trial court about the governing legal standard to assess Juror 8's residency. Resp. Brief at 16. But it insists this Court should simply defer to the trial court's judgment. *Id.* This "abuse of discretion" approach is untenable. The legal meaning of an accused person's right to have jurors of the county where the alleged offense occurred is not something an individual judge is permitted to define ad hoc.

The constitutional rights that are expressly "enumerated in article I, section 22, must be personally held" and are strictly enforced to protect the accused. *State v. Rafay*, 167 Wn.2d 644, 651, 222 P.3d 86 (2009). These rights may not be waived or diluted unless the accused knowingly, intelligently, and voluntarily agrees. *State v. Harrison*, 24 Wn. App. 2d 40, 53, 519 P.3d 244 (2022). A claim of "constitutional error" is

reviewed de novo. *State v. Buchanan*, 190 Wn.2d 51, 57, 409 P.3d 193 (2018).

Here, the court was particularly upset that Juror 8 had not raised his residency status until shortly before trial testimony started. 5/15RP 1986-87. The court found this late notice "frustrating to say the least." *Id.* The court immediately voiced concern that releasing Juror 8 would risk having too few jurors because it had also released another juror after that juror was selected juror due to hardship. *Id.*

At the outset of its inquiry, the court advised the parties it was "not inclined" to release the juror even though the juror said, "Oh, I spend most of my time in Arizona." *Id.* The court's concern about losing a juror at the start of trial impacted the court's decision not to remove him, even though this consideration should be irrelevant. There is no efficiency exception to article I, section 22.

Juror 8's late notice, clear statement that his "primary residency is in Wickenberg, Arizona," and some conflicting

statements about his plans to stay in Washington do not overcome the constitutional mandate that he must actually be a resident of King County to serve in a King County case. Contrary to the prosecution's argument, the trial court is not accorded broad or unfettered discretion to confer residency upon a person because he happens to be there at the time of jury selection and may stay with a relative.

Juror 8's admission that he spent most of his time in Arizona disqualifies him from serving. He lacked the necessary connection to the county at the time he was summoned, when the trial started, as mandated by article I, section 22. The court's "[d]eparture from the constitutional jury selection requirements" involving residency in the county requires "reversal and remand for a new trial." *Barnhart*, 172 Wn.2d at 233-34.

2. The overlapping factual and legal violations violate double jeopardy and Mr. Hernandez-Escobar's right to a unanimous jury verdict.

As Mr. Hernandez-Escobar's opening brief explains, his conviction for child molestation in count four was not separate and distinct from the counts of rape of a child based on the identical charging period. The prosecution's brief relies on its closing argument, but this argument is something jurors are instructed to disregard as they wish, because it is "not evidence" and is not the law "contained in the instructions." CP 454.

The instructions did not tell jurors that the counts must rest on separate and distinct conduct, as the prosecution concedes. Resp. Brief at 31. A court may only enter two convictions for offenses that may span the same conduct if it is manifestly apparent that the jurors relied on separate and distinct acts. *See* Opening Brief at 28-33. On this record, the prosecution cannot overcome the presumption of a double jeopardy violation. *Id.* at 34-36.

In addition, the court erroneously denied Mr. Hernandez-Escobar's request that jurors specify the basis of their verdict, to avoid overlapping convictions and protect his right to a unanimous jury verdict. The court's failure to require an express explanation of the jury's verdict violates Mr. Hernandez-Escobar's right to juror unanimity. *See* Opening Brief, 36-43.

3. Remand is necessary to correct the errors in two community custody conditions.

a. The geographical restriction is overbroad, as this Court recently held.

As explained in the Opening Brief, this Court ruled that an identical community custody condition deferring discretion to the community custody officer over any geographical boundaries is unconstitutionally vague.

This Court recently agreed in yet another case, again holding that a community custody condition giving unfettered authority to a community custody officer to set geographical boundaries is a constitutional error that violates due process. *State v. Weeden*, __ Wn. App. 2d __, 2025 WL 253933, *2 (Jan.

21, 2025) (unpublished, cited pursuant to GR 14.1). This same constitutional error occurred here.

b. The unbridled search condition violates article I, section 7 on its face.

It cannot be disputed that to search a person's property during community custody, the State "must have 'reasonable cause to believe' a probation violation has occurred." *State v. Cornwell*, 190 Wn.2d 296, 303, 412 P.3d 1265 (2018); Const. art. I, § 7; RCW 9.94A.631(1). Because condition 8, on its face, authorizes a search of a person's home without reasonable suspicion of a crime or a violation of a community custody condition, this Court should address this purely legal error.

This condition may be rendered constitutional and lawful if it "make[s] clear" that a community custody officer "must have reasonable suspicion of a probation violation" and this search must be "necessary" for the officer "to monitor compliance with the particular probation condition that gave rise to the search." *State v. Reedy*, 26 Wn. App. 2d 379, 395, 527 P.3d 156, *rev. denied*, 1 Wn.3d 1029 (2023) (unpublished,

cited pursuant to GR 14.1) (quoting *Cornwell*, 190 Wn.2d at 304).

Like *Reedy*, other courts have ruled this issue is ripe for review before an unlawful search occurs. *State v. Gililung*, 31 Wn. App. 2d 718, 725, 552 P.3d 813, 2024 WL 3577430, ¶ 105 (2024) (unpublished portion of opinion); *State v. Franck*, 12 Wn. App. 2d 1008, 2020 WL 554555, *10-11 (2020) (unpublished).

The trial court should address this condition on remand and either strike it or alter its language as in *Reedy* and *Cornwell*.

B. CONCLUSION

As explained above and as detailed in Mr. Hernandez-Escobar's opening brief, this case should be remanded for a new trial. In addition, this Court should vacate count four due to the double jeopardy violation and amend unconstitutional sentencing conditions.

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DATED this 21st day of February 2025.

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DECLARATION OF FILING AND MAILING OR DELIVERY

The undersigned certifies under penalty of perjury under the laws of the State of Washington that on the below date, the original of the document to which this declaration is affixed/ attached, was filed in the Court of Appeals - Division One under Case No. 86001-1-I, and a true copy was mailed with first-class postage prepaid or otherwise caused to be delivered to the following attorney(s) or party/parties of record at their regular office or residence address as listed on ACORDS:

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